

*Hubbard vs. Child*, 14 Jurist, 544. The third class cannot, of course, arise here; and as it is on this question only—namely in what cases leave can be obtained to file a claim,—that nearly all the English decisions since the Orders have turned, it cannot be of any service to cite them. Some decisions, partly on other points, may be useful. At the hearing of a claim for specific performance, the contract must be produced and proved, *Marshall vs. Davies*, 14 Jurist, 997. Here on the motion for a reference, it is not necessary to produce the exhibit but only the affidavit in the form above given. An Order was made for the appointment of a Receiver, at the hearing of a claim, although not asked for, as it seems, in the claim, *Bickford vs. Chalker*, same page. See as to asking specially for a Receiver, in a bill, *Barlow vs. Gains*, 8 Beaven, 329. A special direction not to disturb settled accounts was refused, when not asked for by the claim, *Woodman vs. Farley*, 14 Jurist, 898. This decision is important in reference to the 4th Order, (answering to the English 13th Order). It has been decided in England, that, when the claim is unopposed, the plaintiff must still produce an affidavit. This renders the practice so far similar to that which obtains here, (see the form of affidavit above given.) *Hutchinson vs. Taylor*, 14 Jurist, 845. An Injunction case, under either practice, must go to a hearing on evidence, the summary proceeding not being applicable. The English case is *Hölden vs. Chalcraft*, 14 Jurist, 846.

A case in England, *Davies vs. Marshall*, decided in June, 1850, is said to have given rise to a doubt as to the mode of stating documents in the claim (or bill) for specific performance, (see *Jurist*, June 22nd, 1850, page 222). But the better practice, it is apprehended, will be to adhere as closely as possible to the direction of the form.

Where there was a devise to executors in trust for one for life, and then for her children, the children filing a claim, the case was decided to be within the Order 1, (see Sec. 2 of that Order). It was said that the Orders

Which of these doubts may arise here.

English authorities.

Proof of contract.

Receiver.

Special direction.

Unopposed claim.

Injunction.

Stating documents under new forms.

Construction of Section 2, of Order 1.